

Council Meeting

July 12, 2023

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, July 12, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept the minutes of the June 21, 2023, City Council meeting.

Voice vote:

**O’Hearne – yes
Batchelder - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges – yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 9-0**

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A motion was made by Councilor O’Hearne and seconded by Councilor Stone to accept the minutes of the June 28, 2023, City Council meeting.

Councilor Contois asked for the following changes:

On page 1 Councilor Contois’ name is not present under “members of Councilors present”.

Under report of secretary Councilor Contois’ name is name is missing from roll call.

On Page six, there is no Mooshian recorded vote, as well as page nine.

Voice vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0 after changes

MAYOR’S NOTES

Mayor Girard presented the Plan NH Merit Award the City received for Pleasant Street.

Mayor Girard thanked the leaders in the community for their efforts and the preparation in anticipation of the weather.

CITY MANAGER’S REPORT

Manager Manale thanked Director Gleeson, Chief Wilmot, and Chief Chamberlain for being proactive in preparing Claremont for flooding.

ARC hosted a successful bike race over weekend, with plans to host in the future.

Manager Manale gave an update for the CSBCC membership renewal, and stated 10% of memberships have been renewed, and asked the community members not to take out their

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frustration of rising costs on front desk personnel, and instead contact the City Manager, Director Lawrence, or a City Council Member.

Sidewalk Projects are starting later this week on Maple Ave. Paving from Washington to Hannover St., and Chestnut St. from Juniper Hill to the Urban Compact Line, will be starting the second week of August and will be done during the evening to have less impact on traffic. Crack sealing is tentatively scheduled for the second week in August.

Councilor Koloski shared concerns for the downtown area plantings and noted there are foreign weeds in several of them, some have sharp thorns.

Councilor Koloski also stated he walked the street by Golden Cross and noted it was obstructed by overgrowth, and there is a homeless encampment next to visitor's center with a strong odor coming from this area.

Manager Manale will follow up on these concerns and noted Southwest Servies were contacted for the encampment.

APPOINTMENTS TO BOARDS AND COMMITTEES

Frances J. Tolles Home Board of Trustees

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to re-appoint Sherrie Curtis to Seat 6 of the Frances J. Tolles Home Board of Trustees.

Voice vote:

O'Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to re-appoint Deborah Snelling to Seat 7 of the Frances J. Tolles Home Board of Trustees.

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Voice vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

CITIZEN’S FORUM

Mayor Girard reminded all citizens may speak for five minutes on non-agenda items, and asked to announce their name and ward.

Roberta Hood, Ward 1, stated she took a walk into handicap area and has not seen any improvements, and that it has been almost a year since coming to these meetings. Ms. Hood stated the handicap accessibility needs to be addressed ASAP. Ms. Hood also asked why Fidium Fiber is not available in Claremont, and that there needs to be more than two internet options.

Manager Manale stated, the City did purchase a temporary ramp, and noted it has not been easy to get contractors, and is hoping to start soon.

OLD BUSINESS

Ordinance 608 Food Truck Policy – Second Reading – Public Hearing

Councilor Stone stated this was the second reading of the Mobile Food Unit Policy and thinks many people are happy seeing this this move forward.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #608

Claremont City Code Amendments

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The City of Claremont Ordains:

Pursuant to Chapter 1, Section 1-9, of the Claremont City Code is hereby amended as follows:

Section 1. Chapter 8- Licenses and Business Regulations, Article V, Division 2, Sections 8-131 through 8-135.

Revise and update Sections 8-131 through Section 8-135, as follows:

- **DIVISION 2. - SPECIAL PROVISIONS FOR FOOD/BEVERAGE
VENDING FROM A MOBILE FOOD UNIT**

- *Footnotes:*

--- (5) ---

Editor's note— Ord. No. 567, § 3, adopted June 12, 2019, set out provisions intended for use as §§ 8-126—8-130. To preserve the numbering style of this Code, and at the editor's discretion, these provisions have been included as Div. 2 §§ 8-131—8-135.

- **Sec. 8-131. - Definitions.**

As used in this division 2, the following terms and phrases shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Mobile Food Unit: is a food service establishment mounted on wheels or otherwise designed to be immediately moveable.

Mobile food vendor: is a hawker or peddler (as defined in article V of this chapter) selling or offering for sale food and/or beverages from a Mobile Food Unit.

Ice Cream Truck: is a motor vehicle used as the point of retail sales of commercially prepared, pre-wrapped, or prepackaged or hand scooped or soft-serve ice cream, frozen yogurt, frozen custard, flavored frozen water, or similar frozen products. Non-frozen items such as commercially prepared pre-packaged soft drinks, candy, chewing gum, and snack food may be sold from an ice cream truck provided the principal product sold

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is ice cream and/or similar frozen dessert products. An ice cream truck is a type of food truck.

(Ord. No. 567, § 3, 6-12-2019)

- **Sec. 8-132. - Statement of purpose and interpretation.**

The purpose of this division 2 is to regulate sales by Mobile Food Vendors within the city. This is necessary to ensure the free flow of motor vehicle and pedestrian traffic and to promote the public health, safety, and welfare while providing the opportunity for Mobile Food Vendors to operate within the city. Mobile Food Units are subject to all provisions of this Article V except where division 2 conflicts with any other provisions of Article V, those in division 2 shall control.

(Ord. No. 567, § 3, 6-12-2019)

- **Sec. 8-133. - Permit required; fees.**

No person shall act as a Mobile Food Vendor within the city unless he or she has obtained a valid permit from the planning and development department. A Mobile Food Unit permit shall take the place of the permit required for hawkers, peddlers, and itinerant vendors under section 8-117 and shall require the same license from the New Hampshire Secretary of State's Office under RSA 320:8 or RSA 321:4, and shall be subject to both the permit requirements under section 8-118 and the following additional requirements:

- (1) Applicants may apply for daily, weekly, or quarterly permits, or special event permits. Vendors to whom permits are issued have discretion about how much of the day, week or quarter they occupy their permitted space. When more applications are received for spaces than are available during any particular quarter, week, or day, the planning and development department shall determine the allocation by lottery; provided, however, that vendors who apply for a quarterly permit shall be given preference for designated spaces, and remaining spaces will be allocated to other applicants. When more applications are received for spaces than are available during any special event, the planning and development department shall determine the allocation by lottery.
- (2) An applicant's original application shall remain valid for one (1) year from the date it is submitted if the information provided in the application has stayed the same. If the applicant wishes to obtain subsequent daily, weekly, quarterly, or special event permits within that year, he or she may submit a signed statement to the planning and development department that nothing has changed since the original application instead

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of submitting a new application. However, if the subsequent permit sought requires a background check or insurance certificate that was not required as part of the original application, that step will be required as part of the subsequent application.

- (3) *Daily permits.* Applicants must apply for daily permits at least three (3) business days before the requested date and shall specify the day(s) for which the permit is sought.
- (4) *Weekly permits.* Applicants must apply for weekly permits at least ten (10) business days before the requested date and shall specify the week(s) for which the permit is sought. A week as used herein, is defined as Sunday through Monday.
- (5) *Quarterly permits.* Applicants must apply for quarterly permits at least ten (10) business days prior to the beginning of the quarter. A quarter as used herein, means January—March, April—June, July—September, and October—December.
- (6) *Special event permits.* Applicants must apply for special event permits at least ten (10) business days before the event.
- (7) In addition to specific black-out times established in this article V, black-out dates for one (1) or more locations may be established by the city's director of parks and recreation as he or she deems advisable to avoid interference with local special events.
- (8) Permitting fees for special events, daily, weekly, and quarterly permits shall be as provided in the city's fee schedule, which may be amended from time to time. An increased permit fee shall be charged for any permit that includes permission to plug the Mobile Food Unit or any accessories into a city power source, as provided in the fee schedule. The fee schedule shall also include additional fees for access to restroom facilities as applicable.

(Ord. No. 567, § 3, 6-12-2019)

• **Sec. 8-134. - Location.**

Mobile Food Unit vending activity is limited to the areas described below.

- (1) The following fixed parking spaces on city-owned property and/or public streets, each of which shall be eighteen (18) feet by eight (8) feet in area:
 - a. three (3) spaces in the lower parking lot of the visitors' center;
 - b. One (1) space at the Claremont Municipal Airport;
 - c. One (1) space adjacent to the westerly side of Broad Street Park (adjacent to the city's Broad Street Parking Lot).
 - d. One (1) space at the Arrowhead Parking Lot
- (2) Areas on city-owned property and/or public streets, eighteen (18) feet by eight (8) feet in area, designated by the city for the operation of Mobile Food Units in connection with a special event.

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3. Where permitted by the city's zoning ordinance, sites on commercial/industrial property with permission from the property owner(s) (for example, parking lots at big box stores).

(4) Mobile Food Unit vending is prohibited in the historic district (except in city-designated fixed or designated spaces) or in any residential zone (except for ice cream trucks). This subsection does not apply to special events.

The planning and development department is authorized to permit Mobile Food Unit vending in other locations consistent with the purposes of this Division.

(Ord. No. 567, § 3, 6-12-2019)

- **Sec. 8-135. - Additional regulations applicable to Mobile Food Unit.**

In addition to the requirements of section 8-118, all Mobile Food Vendors shall meet the following requirements:

(1)

Successful completion of a state criminal background check for owner/operators operating in residential areas and/or school zones. Pursuant to RSA 31:102-b, these applicants (except for a special events permit) shall submit with their application a notarized criminal history records release form, as provided by the division of state police, which authorizes the release of the person's criminal records, if any. The cost of the records check shall be included with the permit application fee as provided in the city's fee schedule. Upon completion of the records check, the division of state police shall release copies of the criminal history records to the city's police department, which shall maintain the confidentiality of all criminal history records information received pursuant to this section. A permit shall be denied upon recommendation by the city's police chief if the background check indicates offenses related to RSA chapter(s) 318, 630, 632, 361-A, 639, 645, 649-A, 649-B, 650, 650-A, as the same may be amended from time to time, or other offenses of similar concern.

(2)

In addition to the insurance required under section 8-118(4), Mobile Food Unit vendors must also submit with their application a certificate of insurance from an insurance company licensed by the State of New Hampshire, naming the city as an additional insured (if the permit is for operation on city-owned property or public streets), stating that the applicant has in-force commercial automobile insurance for owned, hired and

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non-owned vehicles in an amount of one million dollars (\$1,000,000.00) for bodily injury and property damage combined single limit per occurrence for all claims arising out of the applicant's operations in the city. Such coverage shall also include an endorsement that the city shall receive written notice upon any reduction in coverage or upon termination or cancellation of the applicant's coverage.

(3)

All Mobile Food Vendors shall comply with RSA 265:71, parking with the right-hand wheels of the vehicle parallel and adjacent to the right-hand side of the curb (i.e., with the direction of traffic); provided, however, that during special events, any Mobile Food Unit parked in an area specifically designated and approved by the parks and recreation department may park against traffic.

(4)

Where the vendor connects with an external power source, all electrical cords shall be taped to the ground, covered, or otherwise secured so they do not create a tripping or other hazard.

(5)

If required under the New Hampshire State Fire Code, as the same may be amended from time to time, the vendor shall install and maintain a fire suppression system in the Mobile Food Unit for use in cooking therein. The system shall be properly installed, maintained, and inspected as required by the State Fire Code and as administered by the city's fire department.

(6)

Hours of operation. For fixed or designated sites on city-owned property or public streets, Mobile Food Units may operate between 7:00 a.m. and 10:00 p.m., Sunday through Thursday and between 7:00 a.m. and 12 a.m. Friday and Saturday; or unless permitted otherwise by the city health officer Mobile Food Units operating on private property may operate at times agreed to with the property owner(s).

(7)

Unless otherwise approved during the permitting process, Mobile Food Units other than ice cream trucks shall not play any amplified music.

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(8)

Aside from signage on the vehicle itself, each Mobile Food Unit on city-owned property or public streets may have one (1) additional sign, such as a sandwich board. The additional sign must be in accordance with the zoning ordinance for signage and may not be placed anywhere that would create a hazard or obstruction to the traveling public.

(9)

Lights are permitted on the vehicle so long as they do not create a distraction or hazard to traffic.

(10)

A Mobile Food Vendor may offer seating adjacent to the vehicle; provided, however, that in a fixed or designated space, such seating must be located entirely within that space or within an additional space for which the vendor has obtained a permit, and on private property, such seating must be placed in a manner agreed to with the property owner(s).

(11)

A Mobile Food Unit shall not be left unattended on any city-owned property or public street, except if it is parked, secured, and not open for business. Mobile Food Units with a permit to occupy a fixed or designated space must be moved no later than forty-five (45) minutes after closing for business for the day. No Mobile Food Unit will be permitted to occupy a space overnight except in conformance with generally applicable parking regulations.

(12)

All trash or refuse generated by or resulting from the operation of or sales from the Mobile Food Unit shall be picked up, removed, and disposed of off-site by the vendor in an approved location ("carry in/carry out"). The vendor shall provide a rubbish bin or other container for use by customers.

(13)

Ice Cream Truck vending shall occur only as follows:

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a.

Ice Cream Truck vending may occur on public streets with a speed limit of thirty (30) miles per hour or less or on private ways with the consent of the owner(s) of the private way. No Ice Cream Trucks shall make any sales within twenty (20) feet of any intersection or in any area where parking is prohibited or which is posted as a no parking zone.

b.

An Ice Cream Truck must be completely stopped and parked before selling any products.

c.

The vendor shall sell the product only from the side of the truck facing away from moving traffic and as near as possible to the curb or edge of the street.

d.

No ice cream truck may be stopped in any location for more than fifteen (15) minutes.

(Ord. No. 567, § 3, 6-12-2019)

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 8- Licenses and Business Regulations, Article V, Division 2, Sections 8-131 through 8-135 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

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A motion was made by Councilor Batchelder and seconded by Councilor Stone to adopt Ordinance 608.

Councilor Batchelder read the explanation of proposed action into the record.

Mayor Girard opened public hearing.

Roberta Hood, Ward 1 asked about the locations.

Mayor Girard closed the public hearing.

Roll call:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

NEW BUSINESS

Ordinance 609 Cottage Developments First Reading – Public Hearing

City Planner Bearse, stated these developments came from a housing study in 2017, and noted this is another tool for housing. Size is limited to maximum of 1500 square ft, and encourages neighborhood interactions. Ms. Bearse stated this was allowed in all districts except the industrial district in the City. These developments are intended to fill a need for those who are downsizing or just getting into housing market.

Councilor Contois shared concern for where to put belongings like bikes, and lawn mowers, Councilor Contois is also concerned for it looking too busy.

Councilor Stone shared concern for water and septic.

Councilor Koloski stated the Planning Board had many meetings and this is not the first City to

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do this.

Assistant Mayor Matteau stated there is a crisis in housing in Claremont and the Country. This is one of the solutions planning came to.

Mayor Girard shared concern for the 1500 square ft.

Ms. Bearse stated she did fight this number but ultimately the board chose this is maximum square footage and noted it can always be less.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #609

ZONING ORDINANCE AMENDMENTS

COTTAGE DEVELOPMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Definitions.

Amend Section 22-1, Definitions, to add the new definitions for "Cottage" and "Cottage Development" as follows:

Cottage shall mean a detached owner-occupied one-family dwelling unit with ah maximum gross living area of one thousand, five hundred square feet (1,500 sq. ft.) and a maximum footprint of one thousand five hundred square feet (1,500 sq. ft.). Porches are to be included in the calculation of maximum footprint. Spaces with a ceiling height of six feet or less measured to the exterior walls, such as in a second-floor area under the slope of the roof, shall be excluded when calculating the total floor area of a cottage. Cottages may also be attached horizontally in blocks of no more than three (3) units.

Cottage Development shall mean a development on a single lot having shared open space intended to serve cottages that interact together as a small community.

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Section 2. Conditional Use Permits.

Amend Section 22-147 to permit "Cottage Developments" in the Agricultural Residential District (AR) subject to receiving a Conditional Use Permit, to read as follows:

Sec 22-147. Conditional use permits.

The following uses may be permitted in the agricultural residential district by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

1. Duplexes.
2. ADUs, subject to the regulations contained in section 22-513.
3. *Cottage Developments, subject to the regulations contained in section 22.514.*

Amend Section 22-167 to permit "Cottage Developments" in the Rural Residential District (RR), subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-167. Conditional Use Permits.

The following uses may be permitted in the rural residential district by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

1. Duplexes.
2. ADUs, subject to the regulations contained in section 22-513. (12/14/2022)
3. *Cottage Developments, subject to the regulations contained in Section 22-514.*

Amend Section 22-187 to permit "Cottage Developments" in the Rural Residential District II (RR-2) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-187. Conditional Use Permits.

The following uses may be permitted in the rural residential district II by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

1. Duplexes.
2. ADUs, subject to the regulations contained in section 22-513.
3. *Cottage Developments, subject to the regulations contained in section 22.514.*

Amend Section 22-207 to permit "Cottage Developments" in the Residential District I (R-II) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-207. Conditional Use Permits.

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The following uses may be permitted in the residential district I by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit. (12/14/2022)
 - c. The total number of dwelling units does not exceed a maximum of eight (8).
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.
- (3) *Cottage developments, subject to the regulations in section 22-514.*

Amend Section 22-227 to permit "Cottage Developments" in the Residential District II (R-II) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-227. Conditional Use Permits.

The following uses may be permitted in the residential district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed a maximum of eight (8).
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

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(3) Cottage developments, subject to the regulations in section 22-514.

Amend Section 22-298 to permit "Cottage Developments" in the Business District II (B-II) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-298. Conditional Use Permits.

The following uses may be permitted in the residential district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

(1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:

- a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
- b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and another five thousand (5,000) square feet per additional dwelling unit.
- c. The total number of dwelling units does not exceed a maximum of eight (8).
- d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.

(2) ADUs, subject to the regulations contained in section 22-513.

(3) Cottage developments, subject to the regulations in section 22-514.

Add a new Section to Division 11, Multiple Use Healthcare District (MHU) to provide for Conditional Use Permits to read as follows:

Sec. 22-378. Conditional Use Permits

The following uses may be permitted in the multiple use healthcare district by the planning board, subject to the regulations contained in section 22-100 et. Seq., as well as any other application regulations of this chapter or regulations of the state and the following conditions and safeguards.

(1) Cottage developments, subject to the regulations in section 22-514.

Section 3. Division 11 Multiple Use Healthcare District (MHU).

	City Center Residential I District	City Center Residential II District	Professional Residential District	Mixed Use District	City Center Business II District	Additional Regulations Reference (refer to these sections for additional regulations)
Residential	CR-1	CR-2	PR	MU	CB-2	
Single-family dwelling	P	P	P	CU	P	Sec. 22-387.1
Duplex		CU	CU	CU	CU	Sec. 22-387.1
Multifamily dwelling		P	P	CU	P	Sec. 22-387.1
Conversion of existing single-family to duplex	CU	CU	CU	CU	CU	Sec. 22-387.2
Conversion of existing single-family or duplex to multifamily dwelling	CU	CU	CU	CU	CU	Sec. 22-387.2
Accessory dwelling units	CU	CU	CU	CU	CU	Sec. 22-513
Accessory uses and buildings	P	P	P	P	P	
Manufactured housing on individual lots	P	P				Sec. 22-387.4
Planned residential development		SE				Sec. 22-387.5
Cottage developments	CU	CU	CU	CU	CU	Sec. 22-514

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Section 5. Section 22-514. Cottage Developments

Add a new Sec.22-514, Cottage Developments, to Division I of Article V, Supplementary District Regulations, and renumber the remaining sections of the Division as follows:

Sec. 22-514 Cottage Developments

514.1 Purpose. The purpose of this section is to provide opportunities for single family housing that is small, energy-efficient, and affordable; to allow flexibility in site and design standards while promoting projects that ensure compatibility with surrounding land uses and existing neighborhoods; and to promote sustainability and neighborhood interaction through integrated design.

Cottage developments are intended to serve as part of the City's overall housing strategy to encourage affordability, innovation and variety in housing design and site development while ensuring compatibility with existing neighborhoods, and to promote a variety of housing choices to meet the needs of a population diverse in age, income, household composition and individual needs.

514.2 Applicable Use Districts. Cottage developments are allowed by conditional use in all zoning districts except the I1, I2 or I3 districts, in accordance with Sections 22-100 and 22-101 of this chapter and the requirements of this section.

514.3 Number and Arrangement of Units. Cottage developments shall contain a minimum of three (3) and a maximum of sixteen (16) cottages, located in one or more clusters to maximize efficiency of land use and to encourage a sense of community among the residents. Each cluster shall include a minimum of three (3) units.

514.4 Lot Size. All cottage developments shall have a minimum lot area of one-half acre, except in the AR, RR, RR2, R1 and R2 Districts, where a minimum lot area of 40,000 sq. ft. is required.

514.5 Density and Building Coverage.

(a) Permitted density shall be based on 2,500 sq. ft. of lot area per each cottage.

(b) The maximum permitted building coverage shall be 60% per cottage lot. This allows for a 1,500 SF home (maximum allowed footprint for a cottage per the definition of a cottage) with 1,000 SF of open space left per cottage lot. 400 SF of that 1,000 SF must be dedicated to common open space (see 509.5D)

514.6 Design Standards. The following design standards are intended to define design parameters to create a small community of cottages oriented around open space and to achieve compatibility with adjacent uses.

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A. Individual Cottage Spaces. For each detached cottage, the site plan approved by the Planning Board shall delineate a building site for each detached cottage of no more than 1,500 sq. ft. (Refer to definition of cottage)

B. Detached Cottages. At least 50% of the cottages in the development shall be detached units.

C. Interior Setbacks. The minimum setback between units within a cottage development shall be 10 feet, measured from the nearest point of the exterior walls.

D. Common Open Space. A minimum of 400 square feet of common open space shall be provided per cottage and per cluster. The common open space area for each cluster shall be contiguous and shall abut all of the cottages in the cluster. Cottages shall be oriented around and have their main entry from the common open space.

E. Roofs and Porches.

1. The highest point of the roof of the cottage shall not exceed 24 feet.

2. Cottages shall have an unenclosed, covered front primary entry and porch of at least 60 square feet in size. The front porch shall be oriented toward a common open space. The intent of this porch requirement is to create outdoor space in each cottage that is visually and physically connected to the common open space and to other cottages. The footprint of the porch shall be included when calculating the total floor area of a cottage.

F. Parking Location and Screening Requirements. The cottage development shall provide a minimum number of off-street parking spaces equal to one (1) parking space per cottage and a maximum number of off-street parking spaces equal to one and a half (1.5) spaces per cottage. In addition:

1. Parking areas shall be screened from public streets and adjacent residential uses by landscaping or architectural screening.

2. Parking areas shall be prohibited in the minimum required front yard.

3. Parking areas shall be separated from the common open space by landscaping or an architectural screen.

G. Existing Dwellings. An existing detached or attached one-family dwelling that is incorporated into a cottage development and is nonconforming with respect to the standards of this section shall be permitted to remain on a site used for a cottage development and shall be considered a cottage for purposes of this section. However, the extent of the noncompliance may not be increased, except unless the proposed change is determined by the Planning Board to be consistent in character, scale and design with the cottage housing development.

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H. Street Facing Facades. All cottages within 50 feet of a public street shall have street facing facades that avoid blank walls in order to avoid the appearance of “turning their backs” to the street. For all such cottages, a minimum of 25 percent of the street facing façade shall be comprised of windows and/or glass doors.

514.7 Cottage developments may be permitted subject to satisfactory solution regarding:

- (a) the ownership, use, and maintenance of common open space land to be held in common;
- (b) water supply; and
- (c) wastewater disposal.

Such solution may be a homeowner association or similar legal mechanism.

514.8 Illustrations of Cottage Development Designs.



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Secs. 22-515—22-526. Reserved.

Section 6. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 7. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 8. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to pass Ordinance 609 to a second reading at the August 9th, 2023 Council Meeting.

Assistant Mayor Matteau read the explanation of proposed action into the record.

Mayor Girard opened a public hearing.

Mike Tetu ward 1, offered a suggestion that lot size should be increased to 3000 square feet.

Roberta Hood, Ward 1, wants younger families in Claremont but shared concern for \$100,000 cost is not affordable, and also noted small families will not want to drive 40 minutes to the hospital in Lebanon because our hospital here does not have a maternity unit.

John Nelson, Ward 1, member of the Planning Board, stated it is good to have diversity of housing types, this allows for more people to have opportunity to live here and encourage community.

Mayor Girard closed the public hearing.

Councilor Koloski- stated this isn't for everyone but it's another tool in the tool box.

Roll call:

O'Hearne – yes

Batchelder - yes

Stone - no

Matteau - yes

Koloski - yes

Limoges – no

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 7-2

Ordinance 610 New Construction – Duplexes RI & R2 Zones First Reading – Public Hearing

City Planner Bearse explained the only way to have duplex is to convert a single family home, this ordinance change allows new construction of new duplexes.

Councilor Koloski stated this is another option for housing, this Planning Board is very proactive

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
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and pro-housing.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #610

**ZONING ORDINANCE AMENDMENTS
NEW CONSTRUCTION OF DUPLEXES IN THE R-I and R-II DISTRICTS**

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Conditional Use Permits.

Amend Section 22-207 to permit "Duplexes" in the Residential District I (R-I) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-207. Conditional Use Permits.

The following uses may be permitted in the residential district I by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

(4) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:

- a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
- b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit. (12/14/2022)
- c. The total number of dwelling units does not exceed a maximum of eight (8).
- d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.

(5) ADUs, subject to the regulations contained in section 22-513.

(6) *Cottage developments, subject to the regulations in section 22-514.*

(7) *Duplexes (new construction) provided that:*

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- a) The architectural design of the duplex is compatible with that of the structures within the immediate neighborhood; and*
- b) Parking for the residents is in the side or rear yard, where possible.*

Amend Section 22-227 to permit "Duplexes" in the Residential District II (R-II) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-227. Conditional Use Permits.

The following uses may be permitted in the residential district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

(4) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:

- a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
- b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit.
- c. The total number of dwelling units does not exceed a maximum of eight (8).
- d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.

(5) ADUs, subject to the regulations contained in section 22-513.

(6) *Cottage developments, subject to the regulations in section 22-514.*

(7) *Duplexes (new construction) provided that:*

- a) The architectural design of the duplex is compatible with that of the structures within the immediate neighborhood; and*
- b) Parking for the residents is in the side or rear yard, where possible.*

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.



Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Batchelder and seconded by Assistant Mayor Matteau to pass Ordinance 610 to a second reading at the August 9th, 2023 Council Meeting.

Councilor Batchelder read the explanation of proposed action into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges – yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Resolution 2023-35 ARC and Wheelhouse Agreement- Public Hearing

Memo:

To: Mayor, Assistant Mayor, and Council,

From: Yoshi Manale

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Date: 07/12/2023

Re: Arrowhead Operating Agreement

Mayor, Assistant Mayor, and Council,

The Arrowhead Operating Agreement for the Arrowhead Recreation Club (ARC) and The Wheelhouse has been negotiated and compromised with both parties to provide 4-season recreation opportunities in the Arrowhead Recreation Area (Arrowhead). Numerous meetings and discussions were had to develop these agreements, with each party willing to work with one another for the city's betterment and Arrowhead's future recreational use. The Council is being asked today to consider both agreements, as they have a monetary and long-term impact on the city.

The key points of the agreements are as follows:

Arrowhead Recreation Club (ARC) Agreement

1. *Recreational Services Provided by ARC:* ARC will operate outdoor recreational opportunities at Arrowhead, including ski trails, mountain bike trails, a skating rink, and other facilities.
2. *Use of Facilities:* ARC can use certain areas of the Lodge and other facilities to provide recreational services. This includes the concession/kitchen area and ticketing office. (The footprint is in the attached layout)
3. *Fees:* ARC can collect fees from users of the recreational services as long as the fees do not exceed those charged by similar private facilities. ARC shall pay the City 10% of any Special Event net proceeds, excluding concessions and the cardboard sled race.
4. *Expenses and Payments to the City:* ARC is responsible for paying an annual operations fee of \$1.00 to the City. ARC also pays for utilities used and may be exempt from real estate taxes if it qualifies for a charitable tax exemption.
5. *Improvements:* ARC may make improvements to the Facilities with the approval of the Director. Fixtures or improvements that cannot be easily removed without damage to the land or the Lodge will belong to the City. As the City owns the Lodge, it agrees to update the downstairs bathrooms to make them ADA-compliant and contribute 50% of the deck cost. ARC will be responsible for 25% of the final price. The deck is anticipated to cost approximately \$50,000 and will be part of next year's capital improvement plan.
6. *Maintenance:* The City is responsible for specific maintenance and repairs of the Lodge, while ARC is responsible for maintaining recreational equipment and facilities associated with its usage at Arrowhead.

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7. *Joint Review Committee and Oversight:* ARC's performance is subject to review and oversight by the City's Parks and Recreation Director. The Director can make rules for ARC's operations and periodically review its performance. In addition, a five-person joint review committee shall be created consisting of representatives of ARC, Wheelhouse, and the City to make recommendations to the City regarding any changes in the agreement as may be necessary to respond to changing circumstances.
8. *Insurance:* Both ARC and the City must maintain insurance coverage as specified in the agreement. The City will carry liability insurance for the ski area and fire insurance on the Lodge, excluding any property belonging to ARC or the Wheelhouse.
9. *Shared Use:* The City may allow other operators to use the Facilities if they do not unreasonably interfere with ARC's recreational services. Arrowhead remains accessible to the public, and any changes required to accommodate shared usage will be made.
10. *Term:* The agreement is initially valid for five years, with an option to renew for five years.
11. Other provisions include identifying the Facilities as publicly owned, compliance with standards and legislation, indemnification of the City by ARC, and property interests.

Wheelhouse Agreement

As the Wheel House has built and maintained the Arrowhead Mountain Bike Trails, they will provide outdoor recreational opportunities and services at Arrowhead, developing new trails and maintaining the current.

Key provisions of the agreement include:

1. *Recreational Services:* The Wheel House will provide specified outdoor recreational opportunities, which include maintenance of the mountain biking trails and enhancing the 4-season use of the Arrowhead recreation area with non-snow tubing and skiing activities.
2. *Use of Facilities:* The Wheel House may use designated areas of the Lodge (Lodge Footprint) and other Facilities for its operations (Facilities Use)
3. *Fees:* The Wheel House may collect fees from users of its recreational services, subject to approval by the Director. Fees should not exceed those charged by similar private facilities.
4. *Expenses and Payments to the City:*
 - *Operations Fee:* The Wheel House will pay the City an annual operations fee of \$24,000.

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- Expenses: The Wheel House will pay for utilities used, pro rata share of taxes (approx. (\$3500), and other expenses as outlined in the agreement.
5. *Improvements*: The Wheel House may make approved improvements to the Facilities. Fixtures or improvements that cannot be easily removed without damaging the land or the Lodge will become City property. This includes the right to construct exterior on-site storage up to 20x40 to be approved by the city.
 6. *Maintenance*:
 - City's Responsibility: The City will handle maintenance and repairs of specific Lodge components and snow/ice removal from public parking lots.
 - Wheel House's Responsibility: The Wheel House will be responsible for other maintenance during its use of Arrowhead, including snow/ice removal from walkways, landscaping maintenance, and upkeep of recreational facilities/equipment used for its services.
 7. *Director and Approvals*: The City's Parks and Recreation Director will oversee Wheel House's performance, make rules, review performance periodically, and may terminate the agreement with notice for breaches or failure to meet standards.
 8. *Insurance*: Both the Wheel House and the City must maintain insurance as specified in Exhibit 8.
 9. *Shared Use*: The City may allow others, including recreational service providers, to use the Facilities as long as they do not unreasonably interfere with Wheel House's services. Public access to Arrowhead will be maintained, except for approved restrictions.
 10. *Term and Renewal*: The agreement has an initial term of five years, with an option for the City to renew for an additional five-year term, subject to notice and conditions.

The agreements are subject to the signing of both agreements with ARC and the Wheelhouse, and the exhibits provide additional details on recreational services, facilities use, expenses, and insurance requirements. The agreements can be canceled, modified, or amended only in writing and are considered the entire agreement between the parties.

Councilor Limoges asked if the ski lift is being replaced. Manager Manale stated this was a potential goal but would be a large expense.

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Councilor Koloski noted this was the first time reviewing the agreement and shared concern for the language in the operating agreement.

Councilor Koloski also shared concern for putting a lot of responsibility to make these decisions onto Director Lawrence, when the Council is essentially the landlord.

A motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to suspend Council rules.

Voice Vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - opposed

Limoges – yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 8-0, 1 opposed.

A motion was made by Councilor Stone and seconded by Councilor Batchelder to hold a non-public for 91- A:3 II(d).

Assistant Mayor Matteau stated negotiating should be heard by the public.

Roll call:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - no

Koloski - no

Limoges – yes

Contois - no

Mooshian - no

Girard - no

Motion failed 5-4

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Assistant Mayor Matteau stated her appreciation for the efforts by all parties, and thinks the end result is going to be a win for the City. Assistant Mayor Matteau is in favor but doesn't want to rush and would like to see more work into the agreement.

Councilor Koloski suggested a motion to table with direction, and noted he doesn't think it would be fair to vote at this time.

Assistant Mayor Matteau doesn't want to table it, and asked if the Council could hear from those that showed up to speak about this agreement.

Mike Tetu, Ward 1, appreciates efforts from the Council, the new ARC Board, Yoshi, and Parks and Recreation. Mr. Tetu noted this is a big deal and a big change and read a letter he prepared for Council stated the money would be better spent for a Northern Borders Grant and building a separate bike shop, and wants to see Council retain authority to terminate agreements.

John Nelson, Ward 1, current president of ARC noted he grew up snowboarding at Arrowhead and stated there is an opportunity for the future of ARC and Wheelhouse.

Zac Wallace, Ward 2, free-lance photographer and board member of ARC addressed comments such as this agreement being behind the scene deals is not accurate and also noted he wants people to move here because we have something most places don't. Mr. Wallace then read a letter to the Council:

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Ward #2

1

Good evening. My name is Zach Wallace. I'm a freelance photographer and board member of the Arrowhead Recreation Club (ARC) and have been a Claremont resident my entire life.

I recently read a perplexing Facebook comment from someone who believes the city and its Parks and Recreation department have been unfairly favoring the bike shop over ARC because they see biking as a "boon" to be capitalized on, as if that were somehow a negative or undesirable thing. It should not be difficult for anyone to understand why a municipality such as Claremont would be inclined to welcome a diverse group of vibrant, passionate, hardworking people who are willing to travel to Claremont to ride their bikes down Arrowhead and spend their money at our local stores, bars and restaurants, lodging facilities, campgrounds, etc. As if that wasn't enough, the city's interest makes even more sense when one considers the fact that bikers are constantly volunteering to build and maintain trails for the enjoyment of everyone—free of charge—simply because they love riding, giving back to the community, and taking pride in creating something special that will hopefully outlive them. Essentially, the city and surrounding communities get to reap all the benefits without having to spend a dime of the taxpayers' money—it's a win-win scenario for everyone.

I feel it's important to mention that, contrary to some of the false narratives and misinformation swirling around on social media, winter recreation is not under any kind of threat from any members of the biking community or newly elected board members of the recreation club. We all recognize the importance, value, and rich history associated with winter sports and tubing at Arrowhead and in no way want to put any of that in jeopardy. That being said, I, along with many others, strongly believe the lodge is being severely underutilized in its current state and that allowing the Wheel House to operate their business from it would provide the best path

[Handwritten signature]

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→ essentially vacant

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forward for everyone. As it stands, the lodge is currently closed to the public for more than 80%
of the year. People frequently travel great distances to get here only to discover there is nowhere
to go to the bathroom, change their clothes, or get drinks or snacks onsite. Nobody wants to take
all their gear off or pack up their belongings and drive away just to use a bathroom, so it's not
difficult to figure out what most people are doing instead (spoiler: they're using the woods).



Similarly, if one's bike breaks and they lack the parts or tools necessary to fix it—which happens
quite often due to the rugged terrain—their day or weekend is over; they have to take their gear
off, put their bike back on their vehicle, pack their things up, and leave.

Now, imagine having a bike shop operating out of the lodge at the base of the hill six
days a week, fifty-two weeks a year that would be able to repair, rent, demo, or loan a bike to get
them back on the trails so they can enjoy their time here to the fullest. Sure, one can put a bike
shop almost anywhere and be successful, but it makes the most sense to have one right at the
bottom of the hill in a building that is being unused for much of the year. The owners of the bike
shop are not some wealthy outside investors looking to privatize the hill or prevent public access
to the lodge; they're active, invaluable members of this community who are raising their families
here and trying to improve the area to the best of their ability and should be applauded for all
their tireless, selfless efforts.

I know it's been said many times before, but Arrowhead truly is a unique and special
place. We all know how awesome the tubing and winter activities are, but the biking still seems
to remain a bit of a mystery for many people, perhaps because most of the trails are not visible
from the parking lot or lodge. For those unaware, Arrowhead offers some of the most advanced,
gnarliest, technical mountain bike terrain in the East and attracts all kinds of riders and
adrenaline-junkies, including sponsored professionals and representatives from large, influential

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companies in the industry. Its terrain is challenging and exhilarating; it's steep, loamy, rocky, rooty, and full of natural features such as ledges and large rock rollers that cannot be replicated with tools or muscle.

It's no secret that the ski season has, unfortunately, been suffering as our winters become milder and with more rain and less snow. This spells serious trouble for the entire ski industry and associated tourism that is vital to our state and local economies, and it's especially problematic for smaller, volunteer-run ski hills with limited resources and snowmaking capabilities such as Arrowhead. While ARC does its best to provide affordable fun for the entire community as often as possible during the winter months, we are not Sunapee, Okemo, or Killington. Even if we have the best winter on record next year, we haven't exactly had volunteers lining up at the door looking to help out during the winter months, and finding people to do even the most basic of tasks like shoveling can be challenging. Fortunately, downhill mountain biking and enduro racing attracts many of the same people who enjoy skiing and snowboarding in the winter months, and many of them are eager to help. I know many bikers who stepped up and lent a hand last winter at Arrowhead when no one else would.

Mountain biking, and the tourism associated with it, has exploded in the northeast since the beginning of the pandemic and it is here to stay. Vermont and other parts of New Hampshire have not wasted any time tapping into the immense potential this wonderful activity provides, and neither should Claremont. As someone who spends a lot of time hiking and shooting photos at Arrowhead during the biking season—which typically runs from April till late November—I regularly see license plates from all over the country filling our parking lot; Maine, Massachusetts, Connecticut, Virginia, Illinois, Pennsylvania, New York, Ontario, Canada, Colorado—even Washington and Montana! People who would otherwise ignore Claremont or

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drive through without stopping or visiting are now seeing just how much we have to offer here
and how much potential there is.

I've grown tired of hearing the negativity coming from a small but vocal group of people
who are seemingly reluctant to change or are incapable of seeing the bigger, brighter picture or
simply take pleasure in complaining in their ample spare time. I, like many other people I know,
would love to be proactive and see this city bounce back to its former glory and prosper once
again, and I strongly believe that voting in favor of this operating agreement provides this
community with the best possible opportunity to make it happen. Not every community is
fortunate enough to have such a wonderful, natural playground for outdoor recreation in their
backyard like we do.

At the end of the day, we're a small group of passionate people with a deep love for this
gnarly little hill and the entire community. What Chuck, Spencer, and all the senior ARC
members and volunteers have done for Arrowhead and ARC over the years is greatly appreciated
and deserves recognition, but it's time to light another torch before we're all left in the dark. The
"us" versus "them" mentality must stop. It's a toxic way of thinking that benefits nobody and
goes against ARC's core mission. The biking community and newly elected ARC board
members want Arrowhead to succeed and be better than ever; nobody wants to put an end to any
of the fun that can be had on the hill. Simply put, Arrowhead has enormous potential to become a
popular recreation destination for the entire area, and, most importantly, for all four seasons.

Thank you.

mt af

Chuck Allen, Ward 3, Mr. Allen prepared a letter and read it to the Council:

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Operating Agreement Comments

This resolution terminates the Arrowhead lease established in April of 2002, which currently runs until April 2025.

Proposed agreement states that A.R.C and the Wheelhouse Bike Shop will jointly occupy the Arrowhead lodge. But what it really means is the Wheelhouse Bike shop will occupy the vast majority of the lodge moving their commercial bike shop into the lodge denying public access to the lodge for any public use. Also means the Arrowhead Recreation club will be confined to a very small space in the basement and ticket window service from the outside, which neither is practical for winter operations.

Opposing this proposal would be saying you are opposed to any commercial business taking over the lodge that would deny public access to most of the lodge. Then to continue negotiating with the city on a reasonable agreement to allow for continued public access to the lodge.

The lodge should be a multi-purpose public use facility. Personally, I have nothing to gain. My only desire is to keep the lodge available for public use. Having a private commercial business in the lodge only benefits the business. It's really sad to see the lodge mostly dormant and quiet. Right now, most weekends the lodge should be full of smiling happy people celebrating birthday parties, showers, weddings and other activities, these activities that take place rain or shine.

With appropriate changes to the lease and if the recreation club or the city were allowed to manage the lodge properly and work out a reasonable policy the Arrowhead property could be a very profitable venue that still allowed public access year-round. Once word got out that the Arrowhead property was once again available for public use you would be overwhelmed with inquiries and you would get a bigatta-boy from the public and surrounding communities. Plus, there would be minimal cost to the city, as opposed to the significant proposed reconfiguration cost to the city.

People love the venue. They say it's perfect because of the flexibility for a simple setup where people can be outside or inside, to depending on your imagination and creative talent can create an elaborate setup for a formal function, like a wedding, including space for an outside ceremony.

There are also three separate function rooms of various sizes available for use, not just the lodge in general. Majority of uses were for basic functions like birthday parties, baby showers, bridal showers, family reunions, class reunions, celebrations of life, weekday business retreats or meetings and other activities. The options are endless, if someone needs a space to gather the Arrowhead lodge is ideal. Then there are the winter activities where the lodge is often filled to capacity and function rooms are also available for a fee then as well.

Because the Arrowhead lodge is a valuable asset that thousands of people from the public would like to see remain usable and accessible to the public year-round, improve and stay in existing lease and work on updates to the lease that will not only benefit the city but the general public as well. Many from the public would like to contribute their ideas to make the lodge a profitable location for many activities. Let's listen to them and make them part of the process.

The Arrowhead lodge is designated as a city park and a facility purchased using LWCF funds. There are guidelines and ordinances that apply here and I'm sure some of these guidelines are not being followed with the proposed commercialization, proposed operating agreements, fee structures and requirements for public use.

The prior lease agreement between the non-profit Arrowhead Recreation Club and the city was a win win situation for both the city and recreation club. The club was basically the care taker handling most everyday maintenance and expenses plus adding much infrastructure value. If anyone wants a walk through pointing out all value added to the facility give me two hours, yes, I said two hours and an

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accessor, you will be impressed. The City's responsibility as owner was for major infrastructure work if needed and some utilities and property maintenance.

The way fees for use were handled was the party wanting use filled out a facility use application that included a waiver. The fee was reasonable and flexible based on circumstances, use and hours requested. There were additional charges for extra time, special setups, kitchen use and other factors. Now considering the community we live in charging an unreasonable fee for a simple basic function is not right. Once COVID was manageable requests for the lodge were again overwhelming with almost every weekend booked for something. These fees collected helped cover simple maintenance, fuel for equipment and other miscellaneous expenses.

I am going to say in my opinion this proposed lease agreement with the Wheel House Bike Shop to move their commercial bike shop operation into the Arrowhead lodge was a somewhat unethical maneuver. There were different stories told to both sides, Arrowhead and the city, they will say it was unintentional, but that's how it came across. They made it sound like that the Arrowhead people were going along with it. Nothing could be further from the truth. Arrowhead people were under the impression they wanted to expand mountain bike activity at Arrowhead and assist with Arrowhead operations. Initially they did not ever say they wanted to move their commercial bike shop into the lodge, they will tell people they did. So, they started talking with the city, except they were talking about moving their bike shop into the lodge. They even came back to us and said Nancy wants to know if we were alright with what they wanted to do. We said sure expanding bike activity on Arrowhead sounds good and we will help where we can, because that was what we believed they were talking about. Never once again mentioning they wanted to move their commercial operation into the lodge, intentional or not. Finally in December we sort of found out their plans and we said absolutely not, why would anyone want to take public access away from a beloved historical city park lodge.

Since the property was purchased with the aid of LWCF funds there are strict guidelines on its use through the National Parks service and the city is trying to get around as well.

A.R.C. was told they could still run winter operation without the main floor of the lodge and use a small space in the basement and smaller space for an office, what a joke, it's just not feasible. When that was told to them what did they say, "Well that's just too bad we'll just take the whole building".

There are many other false statements that have been made recently about the Arrowhead operation one was with the lease agreement. The city made a statement that the lease has expired, based on an old opinion by city solicitor Jane Taylor so all room use agreements with people were ordered to be cancelled, they later admitted they were wrong. But still ordered all booking be cancelled and no new ones made, some were weddings that have been planned for two years, family reunions and a whole host of other activities. LWCF people even said these were allowable activities and said this all could have been easily clarified with minor wording changes to the agreement.

There is other misinformation I can clear up if people ask. One was lack of volunteers, yes, we were always looking for volunteers what organization wasn't. This past year volunteers were stating to return in good numbers. Another Arrowhead was losing money, false, even during the covid years Arrowhead still made a small profit.

Finally, why? Why? You can put a bike shop anywhere and be successful, but a lodge with public access, supporting multiple activities, in a city park, can only be right where it is now.

Brian Zutter, Ward II, prepared a letter and read to Council:

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Ladies and gentlemen of the Claremont City Council,

Today, I stand before you to express my full support for the Arrowhead Operating Agreement between the City of Claremont and the Arrowhead Recreation Club (ARC). I also can provide the support of the Arrowhead Recreation Club ^{BOARD} along with the members who have voted ~~for~~ for the approval of this agreement. This agreement signifies a significant step towards the development of a thriving four-season recreational facility for our community.

As we all know, the City of Claremont owns the beautiful Arrowhead Recreation Area, which offers a range of recreational facilities for our residents and visitors. The Arrowhead Operating Agreement outlines the terms by which ARC will operate and maintain certain outdoor recreational opportunities and services at Arrowhead, benefiting both the City and the public.

The agreement highlights the commitment of ARC to provide recreational services that include the maintenance and operation of the ski trails, tubing runs, skating rink, and other outdoor facilities. This will enhance the usage of Arrowhead and contribute to increasing the funds generated from its operations, which will, in turn, offset the City's expenditures for maintaining the facilities.

It is important to note that ARC has already demonstrated its dedication by constructing ski and tubing infrastructure and maintaining the Arrowhead Ski Trails. This organization has proven itself as a reliable partner that has the expertise and passion to provide exceptional recreational opportunities to our community.

Under the proposed agreement, ARC will continue to have the ability to collect fees from individuals and entities using the Arrowhead recreational services. These fees, which will be approved by the Parks & Recreation Director, will be set at a reasonable level, ensuring they do not exceed the charges levied by similar private facilities. This will help sustain the operations of Arrowhead while keeping it accessible and affordable for our residents.

Furthermore, the operating agreement establishes the responsibilities of both parties concerning maintenance and expenses. The City will be responsible for specific maintenance tasks, such as the lodge's foundations, exterior walls, and roofs, while ARC will take care of maintaining the recreational equipment and

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facilities associated with its operations. This division of responsibilities ensures that Arrowhead remains in optimal condition for the enjoyment of all who visit.

To safeguard the interests of the City and its residents, the agreement includes provisions for review, oversight, and compliance. The Parks and Recreation Director will have the authority to establish rules for ARC's performance, ensuring it aligns with the public interest while encouraging the use of the facilities by all. A Joint Review Committee will also be created to monitor the agreement and make recommendations for any necessary changes.

In terms of insurance and liability, the agreement clearly outlines the coverage requirements for ARC and the City. Both parties will maintain insurance policies that protect their interests and indemnify each other from claims arising from their respective activities. This ensures that all parties involved are adequately protected while promoting a safe and secure recreational environment.

Finally, the agreement includes provisions for shared use of the facilities, allowing other recreational service providers to utilize the Arrowhead Recreation Area while ensuring they do not unreasonably interfere with ARC's operations. This encourages collaboration and opens the door for further partnerships that can enrich the recreational offerings available to our community.

In addition to expressing my support for the Arrowhead Operating Agreement between the City of Claremont and the Arrowhead Recreation Club (ARC), I would like to highlight the significant benefits that would arise from having The Wheel House co-occupy the space with ARC at Arrowhead Recreation Area.

The Wheel House, LLC, as a potential co-operator, brings unique expertise and resources that can complement the recreational services provided by ARC. By joining forces with ARC, The Wheel House will contribute to the overall development and success of Arrowhead, further enriching the recreational offerings for our community. Here are some key benefits of having The Wheel House as a co-occupant:

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Diversification of Recreational Opportunities: The Wheel House specializes in unique activities primarily but not limited to mountain biking and trail maintenance. By offering these additional recreational services alongside ARC's existing offerings, we can attract a broader audience and cater to a wider range of interests. This diversification will ensure that Arrowhead remains a dynamic and appealing destination for residents and visitors alike.

Expanded Economic Impact: The presence of The Wheel House at Arrowhead will contribute to the local economy by attracting more visitors and generating additional revenue. With their expertise in outdoor adventure programs, they can organize events and programs that draw participants from near and far, resulting in increased tourism, spending at local businesses, and job opportunities within our community.

A simple example of this impact would be the Eastern States Cup Enduro race that was hosted by Arrowhead Recreation Club on July 7-9. This event was brought to Arrowhead by the direct efforts of The Wheel House. The event was extremely successful for ARC, The Wheel House, Epic Food Truck and The Cruisin' Cow. All of which were involved and provided support and sustenance to all that attended.

By co-occupying Arrowhead, The Wheel House brings expertise, resources, and a network of connections that will significantly contribute to the economic growth of our community. The success of the Eastern States Cup Enduro race, facilitated by The Wheel House and hosted by Arrowhead Recreation Club demonstrates the positive impact that such collaborations can have on the overall economic vitality of our community.

This proposed partnership exemplifies the positive outcomes that can be achieved when different organizations come together to leverage their strengths and collectively contribute to the economic growth and prosperity of our community.

Enhanced Facilities Utilization: The Wheel House's co-occupation of the space will optimize the use of facilities at Arrowhead. With their focus on mountain biking and trail maintenance, they can utilize the existing trail systems while enhancing and expanding them to create an even more exciting and diverse experience for outdoor enthusiasts. This collaboration will maximize the utilization of the resources available at Arrowhead, making it a vibrant hub for

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various recreational activities. A key example is the use of restrooms that are not currently available to visitors of Arrowhead as the location is locked except during events. The proposal for The Wheel House to co-occupy would provide the ability to make the restrooms available more regularly. This might sound like a simple little item, but it represents a positive change for Arrowhead to be utilized by more residents and visitors.

Collaborative Synergy: By co-existing within the same space, ARC and The Wheel House can benefit from shared resources, expertise, and knowledge exchange. They can collaborate on joint marketing efforts, coordinate events and programs, and share best practices, leading to improved efficiency, increased innovation, and a stronger overall recreational experience for our community.

Community Engagement and Education: The partnership between ARC and The Wheel House presents an opportunity for community engagement and educational initiatives. Both organizations can work together to promote outdoor recreation, organize workshops, clinics, and educational programs that foster a love for the outdoors, promote physical fitness, and instill environmental stewardship among our residents, especially our youth.

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In conclusion, the Arrowhead Operating Agreement represents a significant opportunity to advance our vision of a thriving four-season recreational facility. By partnering with ARC, we are leveraging their expertise and resources to maximize the potential of Arrowhead while minimizing the financial burden on the City.

The co-occupation of space by The Wheel House alongside ARC at Arrowhead Recreation Area will bring numerous benefits to our community. It will diversify recreational opportunities, stimulate economic growth, optimize facility utilization, foster collaboration, and provide avenues for community engagement and education. This partnership represents a win-win situation for all stakeholders involved, and it aligns perfectly with our vision of a thriving and inclusive recreational facility.

I urge your support for this agreement, acknowledging the community benefits, enhanced recreational opportunities, and positive economic impact it will bring. Let's unite and create a vibrant, inclusive space at Arrowhead that Claremont can be proud of. Recognize the immense value of The Wheel House, supporting their inclusion as a co-operator. Together, ARC and The Wheel House will create a dynamic recreational space that caters to our community's diverse needs and interests.

Thank you.

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Rob Walker, Ward 1, stated he loves this community, and noted as a business they are dedicated to the community, and wants to keep the conversation going.

Councilor Limoges shared concern, and wants the language cleaned up.

Assistant Mayor Matteau stated any councilor with specific issues should send them to the City Manager.

Manager Manale stated any general suggestions would be helpful and will give an opportunity to address them with the two other parties.

The Council gave directives to the City Manager.

Councilor Koloski suggested monthly payments instead of quarterly payments, language to be added regarding hazardous materials being on-site. Change Director of Parks and Recreation to City Manager, language for termination of agreement for nonpayment, hours of operation, commercial fixture language, accessibility for repairs. Councilor Koloski also asked to see the MOU between the Wheelhouse and ARC.

Mayor Girard suggested the Council should be deciding fees.

Mayor Girard also shared concern for the deck.

Assistant Mayor Matteau stated she was not in favor of committing funding immediately for the deck, and noted this community is great at fundraising.

Council agrees by consensus to bring the ARC and Wheelhouse agreement back with changes.

FUTURE AGENDA ITEMS AND DIRECTIVES

None.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:16 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to adjourn.

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Voice vote:

O’Hearne – yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council